RAMBAM'S INTRODUCTION TO THE MISHNAH

91 Sages and Ten Appendices: How to Learn Mishnah

Rambam's Intro to the Mishnah, Part 9

Source: The Rambam's Introduction to the Commentary on the Mishnah (Rav Shilat's edition), conclusion and the ten appendices (*perakim*)

Shiur: Part 9, the final class of the series on the Rambam's Introduction to the Mishnah, given by Dayan Daniel Kada on Zoom, Tuesday 15 July 2025

These notes are based on the Sofer.ai transcript of the recording.

Recap

Nine sessions: the Oral Torah given to Moshe and taught four times; each generation deriving new laws; **prophecy vs the Sages' authority**; laws added each generation; **Rebbi** gathering them into the **Mishnah**; its **structure** in detail; the **Talmud's four purposes**, including ***derashot***, intentionally cryptic; and **"the four cubits of halachah"**: everything on earth is for the human, whose purpose is **perfecting intellect and character**, above all **knowing Hashem and His unity**. Last week: why so many people, when so few strive for perfection? **To make the Sage's work possible, and to give him a society.** "The four cubits" = **walking with God** in that pursuit.

Tonight: the last part of the introduction, then **ten appendices** that show the Rambam's **encyclopedic knowledge**.

Part 1: The Two Talmuds

וכאשר רב אשי חיבר התלמוד: one of the greatest of his generation, clearly with heavenly help.

The Bavli: 35 tractates

The Mishnah has **61 tractates**, but **the Babylonian Talmud covers only 35**:

Order	Bavli?
Zera'im	Only **Berachot**
Mo'ed	All but **Shekalim**
Nashim	**All seven**
Nezikin	Not **Eduyot** or **Avot**
Kodashim	Not **Middot** or **Kinnim**
Taharot	Only **Niddah**

Rav Ashi died; the Bavli closed **around 500 CE**, about 1,500 years ago.

The Yerushalmi

Meanwhile, the Sages of the Land of Israel compiled the **Yerushalmi**, associated with **Rabbi Yochanan**, earlier, **around 400**.

"It's called the *Jerusalem* Talmud, but it isn't specifically Jerusalem: it's **the Talmud of Eretz Yisrael**. In English academia it used to be called **the Palestinian Talmud**, from before 1948."

- It covers **the first five orders**; in **Taharot**, only **Niddah**. So **nothing in Taharot except Niddah** has any Gemara, Bavli or Yerushalmi.
- **"Understood only with great difficulty,"** with help from the Tosefta and baraitot. That's why Jewish learning has always focused on the **Bavli**: "Even people who finish the Bavli don't necessarily go on to the Yerushalmi. **Learn the Bavli more.** The Yerushalmi is of course Torah, and we need to study it one day."

Part 2: After the Talmud: No Adding, No Subtracting

הרי כל מי שעמד אחריו, להבין דבריהם ולא להוסיף ולא לגרוע.

Everyone after Ravina and Rav Ashi can only understand and interpret, never add or subtract.

Why? **The Talmud is the final Sanhedrin**, so it can't be argued with. Everyone later is **explaining**.

The Geonim

וחיברו הגאונים פירושים רבים, ולא עלה ביד אחד מהם להשלים פירוש כל התלמוד.

The Geonim wrote many commentaries, but to the Rambam's knowledge **none completed the whole Talmud**: some died young, some were **caught up in disputes**.

They also wrote **halachic summaries**, in Arabic and Hebrew:

Work	Author
Halachot Gedolot	**Rabbi Shimon Kayyara** (8th century)
Halachot Ketuot / Halachot Pesukot	**Rav Yehudai Gaon** (8th century)
Halachot of Rav Acha of Shabcha	The ***She'iltot***
Seder Tanna'im	

The Rif supersedes them all

וההלכות אשר עשה רבנו הגדול רבי יצחק... הספיקו במקום אלו כולם.

Rabbi Yitzchak Alfasi, the **Rif** (North Africa, 1000s), **abridged the whole Talmud** and extracted **every practical halachah**: "no one before him managed that."

ואין לי תפיסה עליו בהן... לא יגיעו לעשרה בשום פנים.

I disagree with him in fewer than ten places.

"**Outstanding.** Between the **Rishonim** there are **thousands** of disputes across the Talmud. The Rambam went through the Rif and says **perhaps ten** places are wrong."

Part 3: The Rambam's Own Teachers

וקבצתי מה שבא לידי מפירושי אבי ז״ל וזולתו, מרבינו יוסף הלוי.

I gathered what I received from **my father**, and above all from **Rabbi Yosef HaLevi**.

"**The Rambam rarely writes like this about anyone.** He was very critical. **When he gives compliments, take them very seriously.**"

כי לב זה האיש בתלמוד מבהיל... עד שכמעט אומר עליו: לפניו לא היה מלך כמוהו בדרכו.

This man's understanding of Talmud is astounding. One could almost say of him: **"before him there was no king like him in his way."**

Rabbi Yosef HaLevi ibn Migash, the **Ri Migash**, appointed **rosh yeshivah by the Rif**.

A chain of tradition

The Rif	Rabbi Yitzchak Alfasi
↓ his student	**The Ri Migash**, Rabbi Yosef HaLevi
↓ his student	**Rabbi Maimon**, the Rambam's father, an ***av beit din***, "not just a rabbi"
↓ his son	**Rabbeinu Moshe ben Maimon**

The commentary we lost

The Rambam says he also wrote **commentaries on the Talmud**: on **Mo'ed, Nashim and Nezikin**, plus **four tractates** elsewhere.

"**Unfortunately we don't have it.** We have no direct commentary of the Rambam on the Talmud. **It would have shed so much light on his Mishneh Torah**, which all the other commentators had to do in his stead."

Part 4: Why a Commentary on the Mishnah?

The Mishnah is **fully explained only by the Gemara**, and **can't always be understood from itself**. "Today we have the Rambam, **Bartenura**, many commentaries, recently **Kehati**, and English ones. **In those days it was very hard.**"

#	Benefit
1	**Understanding. אם תשאל גדול שבגאונים פירוש הלכה מן המשנה**, he'll say *give me time to look it up in the Gemara*. "**The greatest of his time had to go and look it up!**" No one can remember all the Talmud, and **one mishnah may be explained over four or five pages**, or **across two tractates**. Here it's **gathered in one place**
2	**Rulings**: who the halachah follows
3	**An introduction for beginners**: learning the whole Mishnah teaches you to **think the Talmudic way**
4	**Review for experts**: a way to **revise** the Talmud

"Not for stones"

כי אין חיבורנו להבין האבנים, אלא להבין מי שיבין.

Our work is not to make stones understand, but to help one who understands.

"Basically: *I'm not writing word by word for people who aren't clever.* **Self-explanatory mishnayot get no comment.**"

His rules of ruling

Case	Rule
Beit Shammai vs Beit Hillel	**Halachah follows Beit Hillel**: he'll note only the **few exceptions**
(anonymous mishnah) **סתם משנה**	**Halachah follows it**; exceptions noted with reasons
Every other dispute	**He'll always say** who the halachah follows, **even individual vs majority**

"May Hashem guide us to the truth."

A trailblazer: no one wrote another full Mishnah commentary until **Rabbi Ovadiah of Bartenura**, Italy, **15th century**, just as **no one before or since** has done a Mishneh Torah.

Part 5: The Ten Appendices

"Now you'll be exposed to the Rambam's **encyclopedic knowledge**. Remember: **this is before ChatGPT, before the internet.**" He says they're **"not essential"**, but they help anyone who wants to be complete in Mishnah.

1. The Sages who taught halachah: 91

The class's guesses: "20"; "lower than 20." *(Philip laughed throughout: "Please, can we stick to the topic? Thank you.")*

The Mishnah names Sages only **from Shimon HaTzaddik** onward (before him: prophets, back to Moshe). From Shimon HaTzaddik to Rebbi, **91 Sages taught at least one halachah in their own name.** "**He's 100% right.** It's all been verified since. **No one has argued.**"

Familiar and unfamiliar names: Rabbi Hyrkanos, Shemaya and Avtalyon, Yehoshua ben Perachyah, Yehoshua ben Beteira, Rabbi Elazar ben Azaryah, Rabbi Tzadok, Yehudah ben Tabbai, **Rabban Shimon ben Gamliel**… and some **mentioned only once**: **Pappias**, **Rabbi Meyasha**, **Rabbi Yosei ben HaChotef Efrati**.

2. Sages named for ethics or stories: 37

Not halachah: an **ethical teaching** (often only in **Avot**) or a **story**:

- **Rabbi Yehoshua ben Levi**, only in Avot

- **Yehudah ben Teima**: **הוי עז כנמר**, "**we say it every morning in Shacharit**," yet he appears **once** in the whole Mishnah

- **Ben Azzai, Ben Zoma, Rabbi Chananyah ben Akashya, Ben Bag Bag, Ben Hei Hei, Antigonos**

- **Elyehoeinai ben HaKof**, a Kohen Gadol mentioned once, in **Parah**; **Chanamel HaMitzri**

91 + 37 = 128.

Mark's AI: "between 120 and 130." "**It can't give you an exact number. The Rambam gives 91.** Unbelievable."

Plus two not counted, making 130

	Why left out
Elisha ben Avuyah	Quoted in Avot (*teaching a child is like ink on new paper; an old man, on erased paper*)**, but called** אחר**, "the other": he** "entered the orchard"** and became a heretic
Menachem	Mentioned only to say **Shammai replaced him** as *av beit din*. Teaches nothing, not even through a story

3. Lineages

Lineage	Sages
From King David, via **Hillel** (← **Shefatyah** ← **Avital** ← David)	**Hillel** and his descendants: **Shimon**, **Rabban Gamliel the Elder**, **Rabban Shimon ben Gamliel**, **Rabban Gamliel**, **Rabbi Yehudah HaNasi**, and his son **Rabban Gamliel**: **seven**
Converts or descendants of converts	**Shemaya and Avtalyon** (converts); **Rabbi Akiva**, son of a convert ("**less well known**; perhaps why his learning was neglected early"); **Rabbi Meir**, descended, per the Gemara, from **the Caesar Nero**, who fled and married a Jewish woman
Kohanim	**Shimon HaTzaddik**, Rabbi Chanina Segan HaKohanim, **Yishmael ben Phiabi** (Kohen Gadol), **Yosei ben Yoezer**, Rabbi Yosei HaKohen, **Rabbi Tarfon**, Elyehoeinai ben HaKof, **Chanamel HaMitzri**, and more

"The rest, as far as we know, are **Yisraelim**; we aren't told."

4. Generations

Groupings of the leading Sages by generation: **before the destruction**, e.g. Shimon HaTzaddik and Dosa ben Hyrkanos; Antigonos; the **Zugot** (Yosei ben Yoezer and Yosei ben Yochanan, Yehoshua ben Perachyah and Nittai HaArbeli… Hillel and Shammai): **"these seven pairs were in the Second Temple and didn't see the destruction"**. Then those who **saw** it, and onward.

5. Teachers and students

Who learned from whom (e.g. **Rabban Yochanan ben Zakkai's** students). **"*Rabbi X says in the name of Y*" means X was Y's student.**

6. Who is "Rabbi Eliezer"? *(the essential one)*

"**Everyone must learn this before studying Mishnah.** People study for years and never ask *which* Rabbi Eliezer."

The Mishnah says…	It means…
Rabbi Eliezer	**Rabbi Eliezer ben Hyrkanos**, student of Rabban Yochanan ben Zakkai
Rabbi Yehoshua	**Rabbi Yehoshua ben Chananyah**
Rabbi Yehudah	**Rabbi Yehudah bar Ila'i**
Rabbi Elazar	**Rabbi Elazar ben Shammua**
Rabbi Shimon	**Rabbi Shimon bar Yochai**
Ben Azzai, Ben Zoma, Ben Nannas	**Shimon** ben Azzai, **Shimon** ben Zoma, **Shimon** ben Nannas
Ben Bag Bag	**Rabbi Yochanan**
אחרים אומרים ("others say")	**Rabbi Meir**
יש אומרים ("some say")	**Rabbi Natan**
חכמים	Sometimes many, sometimes **one Sage** whose view **was accepted by all**
באמת אמרו	**Halachah leMoshe miSinai**
סתם משנה	**Accepted, undisputed**, usually transmitted from **Rabbi Meir** (**סתם משנה רבי מאיר**), though not always the halachah

Why "others" and "some say"? (Horayot 13b.) Rabban Shimon ben Gamliel, the Nasi, sat between **Rabbi Meir** (the *chacham*) and **Rabbi Natan** (*av beit din*), with **equal honour** to all three. Wanting more respect for the Nasi's office, **he changed the protocol** so that only he received the full honour. Insulted, **Rabbi Meir and Rabbi Natan spent the day asking him questions he couldn't answer**. **The consequence:** their teachings would be cited without their names. **"*Others say*" = Rabbi Meir; "*some say*" = Rabbi Natan.**

7. Titles

Level	Title	Examples
Highest	**No title**: too great for any title to fit	**Hillel, Shammai, Shemaya and Avtalyon**, Shimon HaTzaddik, Antigonos, Yosei ben Yoezer, Yehoshua ben Perachyah, Nittai HaArbeli, **Choni HaMe'agel**, Yehudah ben Tabbai, Shimon ben Shetach, Akavya ben Mahalalel, **Bava ben Buta**…
Next	**רבן**	**Rabban Gamliel, Rabban Yochanan ben Zakkai**
Third	**רבי** (and **אבא**, as in **Abba** (**Shaul**	Rabbi Meir, Rabbi Yehudah, even Rabbi Yehudah HaNasi

8. Names from trades and places

- **Trades: Nachum HaLavlar** (the scribe), **Rabbi Shimon HaShezori** (the weaver, as given in class), **Rabbi Yochanan HaSandlar** (the sandal-maker)
- **Places: Ish Chadid, Ish Ono, Ish Bartota, Ish Tzereidah, Ish Yerushalayim**
- Some named after their **father**, some after a more famous **brother**

9. Who argues with whom

"**Fascinating.**"

Most disputes	
1	**Rabbi Meir, Rabbi Yehudah, Rabbi Shimon, Rabbi Yosei** (Rabbi Elazar sometimes)
2	**Rabbi Akiva, Rabbi Eliezer, Rabbi Yehoshua**
3	**Rabbi Akiva, Rabbi Yishmael, Rabbi Tarfon, Rabbi Elazar ben Azaryah**
4	**Beit Shammai and Beit Hillel**
The rest	**Very rarely**

10. Sages with a single halachah: 37

Some taught **a great deal** (Rabbi Meir, Rabbi Yehudah); some sparingly. **Rabbi Eliezer ben Yaakov** taught little, so the Gemara calls his Mishnah **קב ונקי**, "a small measure, but clean," and **we often follow him**.

Of the 91, 37 taught exactly one halachah ("37 again, but a different 37"), each listed: **Nachum HaLavlar** and **Rabbi Meyasha** in **Pe'ah**; **Chananyah ben Chachinai** and **Rabbi Yosei ben HaChotef Efrati** in **Kilayim**; **Elazar Chisma** and **Rabbi Yosei ben Meshullam** in **Terumot**; **Rabbi Chutzpit** in **Shevi'it**; **Nachum HaMadi**; **Rabbi Ila'i** and **Rabbi Dostai** in **Eruvin**; **Rabbi Shimon ben Bechri** in **Shekalim**; and the rest.

The Whole Series in Brief

1. **The Oral Law** and its intact **transmission**
2. **Prophets vs Sages**: prophecy gives **no interpretive authority**
3. **The nature of dispute**: never over what came from Sinai; **not "Chinese whispers"**
4. **Rabbinic authority** in derivation
5. **The structure** of the Mishnah and the Talmud
6. **Derashot and aggadah**: deep wisdom, deliberately wrapped
7. **The purpose of humanity**: **wise and good**; "the four cubits of halachah"
8. **Why the Commentary**, and the **ten appendices**

Coming Up

The four great introductions: Avot (*Shemonah Perakim*: character; done a year ago); **the Mishnah** (structure of Mishnah and Talmud; **finished tonight**); **the Mishneh Torah** (short, **one or two sessions**: next week and perhaps the week after, then the summer break); and **Perek Helek**, Chapter 10 of Sanhedrin, "completely philosophical and theological, very deep and important": **from September**.

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